

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

CARLTON CRAIG,

Plaintiff,

-against-

THE CITY OF NEW YORK, Detective MICHAEL BUTLER
(Shield #2535), and Police Officer DANIEL PANCHYN
(Shield #1735).

Defendants.

**FIRST
AMENDED
COMPLAINT**

14 Cv. 3961 (WFK) (LB)

JURY TRIAL DEMANDED

Plaintiff, CARLTON CRAIG, by and through his attorneys, **THE LAW OFFICES OF MICHAEL S. LAMONSOFF, PLLC**, as and for his First Amended Complaint, respectfully alleges, upon information and belief:

PRELIMINARY STATEMENT

1. Plaintiff brings this action for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988 for violations of his civil rights, and of rights secured by the Fourth and Fourteenth Amendments to the United States Constitution and of rights secured under the laws and Constitution of the State of New York and the United States of America.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988, and the Fourth and Fourteenth Amendments to the United States Constitution.

3. Jurisdiction is founded upon 28 U.S.C. §§ 1331, 1343, and 1367.

VENUE

4. Venue is properly laid in the Eastern District of New York under U.S.C. § 1391(b), in that this is the District in which the claim arose.

JURY DEMAND

5. Plaintiff respectfully demands a trial by jury of all issues in this matter pursuant to Fed. R. Civ. P. 38(b).

PARTIES

6. Plaintiff, CARLTON CRAIG, is, and has been, at all relevant times, a resident of Kings County, New York.

7. Defendant, THE CITY OF NEW YORK, is and was at all times relevant herein a municipal entity duly organized and existing under and by virtue of the laws of the State of New York.

8. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, THE CITY OF NEW YORK. Defendant, THE CITY OF NEW YORK, assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risk attaches to the public consumers of the services provided by the New York City Police Department.

9. At all times relevant to the action herein, defendant THE CITY OF NEW YORK hired, screened, trained, instructed, managed and supervised its police officers.

10. Defendant Detective MICHAEL BUTLER (Shield #2535) is and was at all times relevant herein, duly appointed and acting officer, servant, employee and agent acting under the supervision of the New York City Police Department, a municipal agency of THE CITY OF NEW YORK. The Defendant was acting for, and on behalf of, and with the power and authority vested in them by THE CITY OF NEW YORK and the New York City Police Department, and were otherwise performing and engaging in conduct incidental to the performance of their lawful functions in the course of their duties. The Defendant is being sued herein in his official and individual capacities.

11. Defendant Police Officer DANIEL PANCHYN (Shield #1735) is and was at all times relevant herein, duly appointed and acting officer, servant, employee and agent acting under the supervision of the New York City Police Department, a municipal agency of THE CITY OF NEW YORK. The Defendant was acting for, and on behalf of, and with the power and authority vested in them by THE CITY OF NEW YORK and the New York City Police Department, and were otherwise performing and engaging in conduct incidental to the performance of their lawful functions in the course of their duties. The Defendant is being sued herein in his official and individual capacities.

12. At all times hereinafter mentioned, the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or CITY OF NEW YORK.

13. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant, THE CITY OF NEW YORK.

14. Each and all of the acts of the defendants alleged herein were done by said defendants

while acting in furtherance of their employment by defendant, THE CITY OF NEW YORK.

At all times herein mentioned, defendant CITY OF NEW YORK was under an obligation to use reasonable care in the hiring, training, retention, and supervision of its employees.

FACTS

15. On or about October 6, 2012, at approximately 11:50A.M., Plaintiff, CARLTON CRAIG, was lawfully present at or near 16415 Jamaica Avenue, Queens, New York.

16. At that time and place, the Plaintiff walking at or near 16415 Jamaica Avenue, Queens, New York, when Defendants MICHAEL BUTLER, and DANIEL PANCHYN, came out of a police van and jumped on Plaintiff CARLTON CRAIG demanding that Plaintiff place his hands against a wall.

17. Defendant, MICHAEL BUTLER then began to violently and illegally search Plaintiff CARLTON CRAIG, and Defendant DANIEL PANCHYN immediately placed Plaintiff CARLTON CRAIG in handcuffs that were excessively tight.

18. When Plaintiff asked why he was being arrested, he was yelled at by the Defendant officers and was told to "shut up." Defendant DANIEL PANCHYN then grabbed Plaintiff's shirt in a hostile manner and attempted to rip it off. When Defendant PANCHYN failed to rip Plaintiff's shirt off, Defendant MICHAEL BUTLER and Defendant DANIEL PANCHYN then immediately started to beat Plaintiff CARLTON CRAIG, punching and kicking him violently, causing Plaintiff's earrings to be ripped out, which resulted in bleeding from his ears.

19. At no time on October 6, 2012 did Plaintiff CARLTON CRAIG commit any crime or violation of law.

20. At no time on October 6, 2012 did Defendant MICHAEL BUTLER or Defendant

DANIEL PANCHYN possess probable cause to arrest Plaintiff CARLTON CRAIG.

21. At no time did Plaintiff CARLTON CRAIG use any physical threat or intimidation toward the defendant officers whatsoever nor did he have the physical ability to, as he was immediately placed in handcuffs by the Defendant officers.

22. At no time on October 6, 2012 did Defendants MICHAEL BUTLER and DANIEL PANCHYN possess information that would lead a reasonable officer to believe probable cause existed to arrest Plaintiff CARLTON CRAIG.

23. At no point did Plaintiff CARLTON CRAIG resist arrest and at no point was force used necessary, let alone the actual force that was used by Defendants MICHAEL BUTLER and Defendant DANIEL PANCHYN on Plaintiff CARLTON CRAIG.

24. Thereafter, the Defendant officers transported Plaintiff CARLTON CRAIG to a nearby police precinct where he was kept for a prolonged period of time, approximately 12 hours, without any reason or explanation as to why he was detained or kept in custody.

25. In connection with Plaintiff's arrest, Defendant officer MICHAEL BUTLER and Defendant DANIEL PANCHYN filled out false and/or misleading police reports and forwarded them to prosecutors at the Queens County District Attorney's Office.

26. Specifically, Defendant MICHAEL BUTLER through a supporting deposition falsely, knowingly, and maliciously alleged that, *inter alia*, Plaintiff was resisting arrest, obstructing governmental administration and engaged in disorderly conduct. At no time did the Defendant officer MICHAEL BUTLER and Defendant DANIEL PANCHYN have any evidence that Plaintiff CARLTON CRAIG committed any of these violations.

27. As a result of the conduct of defendants MICHAEL BUTLER and Defendant

DANIEL PANCHYN, Plaintiff CARLTON CRAIG was criminally charged with Resisting Arrest, Obstructing Governmental Administration and Disorderly Conduct.

29. Despite Defendants' actions, on March 3, 2014, the criminal proceedings against the Plaintiff were dismissed in their entirety after Plaintiff was required to make several appearances.

30. As a result of the foregoing, Plaintiff, CARLTON CRAIG sustained, *inter alia*, physical injury, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of his constitutional rights.

**FIRST CLAIM FOR RELIEF FOR DEPRIVATION
OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983**

31. Plaintiff CARLTON CRAIG repeats, reiterates, and realizes each and every allegation set forth above with the same force and effect as if fully set forth herein and at length.

32. All of the aforementioned acts of defendants, THE CITY OF NEW YORK, MICHAEL BUTLER and Defendant DANIEL PANCHYN, their agents, servants and employees, were carried out under the color of state law.

33. All of the aforementioned acts deprived Plaintiff, CARLTON CRAIG, of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and were therefore in violation of 42 U.S.C. §1983.

34. The acts complained of were carried out by the aforementioned individual defendants MICHAEL BUTLER and Defendant DANIEL PANCHYN in their capacities as Police Officers with all the actual and/or apparent authority attendant thereto.

35. The acts complained of were carried out by the aforementioned individual defendants MICHAEL BUTLER and Defendant DANIEL PANCHYN in their capacities as Police Officers,

pursuant to the customs, usages, practices, procedures, and rules of THE CITY OF NEW YORK and the New York City Police Department, all under the supervision of ranking officers of said department.

36. As a result of the acts of defendants MICHAEL BUTLER and Defendant DANIEL PANCHYN, Plaintiff CARLTON CRAIG was subjected to illegal search and seizure in violation of his Fourth Amendment rights under the United States Constitution.

37. Defendants MICHAEL BUTLER and Defendant DANIEL PANCHYN, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

**SECOND CLAIM FOR RELIEF FOR
FALSE ARREST UNDER 42 U.S.C. § 1983**

38. Plaintiff CARLTON CRAIG repeats, reiterates, and realizes each and every allegation set forth above with the same force and effect as if fully set forth herein and at length.

39. As a result of the conduct of Defendant MICHAEL BUTLER and Defendant DANIEL PANCHYN, Plaintiff CARLTON CRAIG was subjected to illegal, improper and false arrest, taken into custody, and caused to be falsely imprisoned, detained, and confined without any probable cause, privilege, or consent.

40. As a result of the foregoing, plaintiff's liberty was restricted, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

**THIRD CLAIM FOR RELIEF
FOR EXCESSIVE FORCE UNDER 42 U.S.C. § 1983**

41. Plaintiff, CARLTON CRAIG, repeats, reiterates, and realizes each and every allegation set forth above with the same force and effect as if fully set forth herein and at length.

42. The force employed by the defendants MICHAEL BUTLER and Defendant DANIEL PANCHYN was unreasonable given the facts and circumstances prevailing at the time and place of the above described incident.

43. Specifically, it was unreasonable for defendants MICHAEL BUTLER and Defendant DANIEL PANCHYN to grab plaintiff, attempt to rip off his shirt, beat Plaintiff by punching and kicking him, all while the other defendant officers applied handcuffs that were excessively tight.

44. As a result of the foregoing, plaintiff, CARLTON CRAIG, suffered a violation of his constitutional rights.

FOURTH CLAIM FOR RELIEF
FOR MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

45. Plaintiff CARLTON CRAIG, repeats, reiterates, and realleges each and every allegation set forth above with the same force and effect as if fully set forth herein and at length.

46. Defendants, MICHAEL BUTLER and Defendant DANIEL PANCHYN, arrested, searched, and detained Plaintiff CARLTON CRAIG in the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge that said search, arrest and incarceration would jeopardize plaintiff's liberty, well-being, and safety, and violate their constitutional rights.

47. The acts complained of were carried out by the aforementioned individual defendants MICHAEL BUTLER and Defendant DANIEL PANCHYN in their capacities as police officers and officials, with all the actual and/or apparent authority attendant thereto.

48. The acts complained of were carried out by the aforementioned individual defendants MICHAEL BUTLER and Defendant DANIEL PANCHYN in their capacities as police officers and

officials pursuant to the customs, policies, usages, practices, procedures, and rules of THE CITY OF NEW YORK and the New York City Police Department, all under the supervision of ranking officers of said department.

49. Those customs, policies, patterns, and practices include, but are not limited to:

- i. requiring officers to make a predetermined number of arrests and/or issue a predetermined number of summonses within a predetermined time frame;
- ii. requiring precincts to record a predetermined number of arrests and/or issue a predetermined number of summonses within a predetermined time frame;
- iii. failing to take any measures to correct unconstitutional behavior when brought to the attention of supervisors and/or policy makers;
- iv. failing to properly train police officers in the requirements of the United States Constitution.

50. The aforesaid customs, policies, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department directly cause, *inter alia*, the following unconstitutional practices:

- i. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics;
- ii. arresting individuals regardless of probable cause in order to positively affect precinct-wide statistics;
- iii. falsifying evidence and testimony to support those arrests;
- iv. falsifying evidence and testimony to cover up police misconduct.

51. The foregoing customs, policies, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department constitute deliberate indifference to the safety, well-being and constitutional rights of Plaintiff, CARLTON CRAIG.

52. The foregoing customs, policies, usages, practices, procedures and rules of THE

CITY OF NEW YORK and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

53. The foregoing customs, policies, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department were the moving force behind the constitutional violations suffered by plaintiff as alleged herein.

54. As a result of the foregoing customs, policies, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department, plaintiff was placed under arrest unlawfully.

55. Defendants MICHAEL BUTLER and Defendant DANIEL PANCHYN, collectively and individually, while acting under color of state law, were directly and actively involved in violating the constitutional rights of plaintiff.

56. Defendants MICHAEL BUTLER and Defendant DANIEL PANCHYN, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of plaintiff's constitutional rights.

57. All of the foregoing acts by Defendants MICHAEL BUTLER and Defendant DANIEL PANCHYN deprived plaintiff of federally protected constitutional rights.

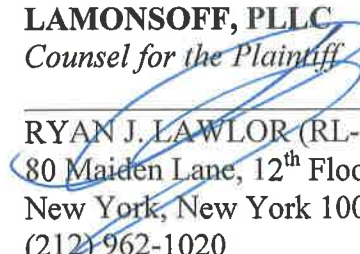
WHEREFORE, the Plaintiff CARLTON CRAIG respectfully requests judgment against defendants THE CITY OF NEW YORK, MICHAEL BUTLER and Defendant DANIEL PANCHYN as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;

- iii. reasonable attorneys' fees and costs under 42 U.S.C. §1988; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs and disbursements of this action.

Dated: New York, New York
October 18, 2014

Respectfully submitted,
**LAW OFFICES OF MICHAEL S.
LAMONSOFF, PLLC**
Counsel for the Plaintiff

By: 

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Index No. CV14-3961
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